

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOHN PAUL AGUIRRE,

Petitioner

VS.

DALE ANTHONY AGUIRRE,

Respondent

) Case Number: FDI-22-796849

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner John Paul Aguirre and Respondent Dale Anthony Aguirre married on 10/24/2015 and separated on 5/18/2022, for a marriage of 6 years and 6 months. The parties have two minor children, Ava (DOB: 7/26/2019, age 6) and Ace (DOB: 3/31/2021, age 5). Petitioner is self-represented, but Respondent states Petitioner uses the attorneys at Van Voorhis & Sosna LLP as consultants. Respondent is represented by attorney Vanessa Hierbaum and her Kaye Moser Hierbaum Ford LLP.
- 2) On 7/25/2024, a Judgment of Dissolution was entered, which incorporates the parties' Marital Settlement Agreement. The Judgment provides in pertinent part:
 - a. The parties are bound by a prenuptial agreement executed on 10/1/2015.
 - b. The Court's jurisdiction to award spousal support to either party is terminated.
 - c. The child custody and visitation Stipulations and Orders filed 7/13/2023, 9/29/2023, and 12/7/2023 shall remain in full force and effect.

- 1 d. Effective 1/1/2024, Petitioner shall pay Respondent base guideline child support of
2 \$3,965 per month pursuant to the attached Dissomaster report (which is based on the
3 parties sharing 50% time of their children, Petitioner earning \$36,666 per month in base
4 income, and Respondent earning \$1,950 per month in base income).
- 5 e. Both parties are subject to a Smith / Ostler child support order.
- 6 f. The parties shall share equally unreimbursed healthcare expenses for the children.
- 7 g. Respondent shall notify Petitioner of any new employment within one week of entering
8 into any employment agreement and child support shall be modifiable retroactively to the
9 start date of Respondent's new employment.
- 10 h. Petitioner shall pay Respondent \$32,500 as a contribution to Respondent's attorney's fees
11 and costs "incurred to date in this proceeding."
- 12 3) At the prior 4/16/2026 hearing, the Court adjudicated Respondent's Request for Order filed
13 2/10/2026 wherein Respondent requested increased child support and need-based attorney's fees.
14 Per the Findings and Order After Hearing filed 6/26/2026, the Court made the following orders:
- 15 a. Effective 5/15/2026, Respondent shall spend 20 hours per week seeking work and apply
16 to at least 5 jobs per week.
- 17 b. Effective 2/10/2026, Petitioner shall pay to Respondent \$5,425 per month in base
18 guideline child support.
- 19 c. Effective 2/10/2026, in addition to the monthly child support payment set forth above,
20 each party shall pay as additional child support to the other party a portion of any and all
21 additional gross income received in excess of the amount set forth in XSpouse calculation
22 (\$475,000 per year in salary income for Petitioner and \$0 in salary income for
23 Respondent), pursuant to the Bonus Tables attached hereto and incorporated herein.
- 24 d. Petitioner shall pay Respondent \$55,000 for need-based attorney's fees and costs for fees
25 and costs incurred between the date the parties entered into their settlement agreement
26 through the date of the 9/15/2026 review hearing.
- 27 e. A review hearing is set for Tuesday, 9/15/2026 at 9:00 AM in Dept. 404 to review
28 Respondent's seek work efforts, to consider imputing income to Respondent, and to
29 review child support.

1 4) On 8/26/2026, Respondent filed an Update Declaration asking the Court to terminate the seek
2 work order (while he gets his health under control) and deny any imputation of income to him
3 because his disability status is currently being recertified and he expects a determination in the
4 coming weeks. Respondent states that he continues to experience chronic fatigue, persistent
5 cough, and gastrointestinal symptoms, and he is being treated for diabetes and moderately severe
6 depression. Upon advice from his currently treating physician (and following a lapse in care due
7 to various factors), Respondent reapplied for disability certification on 8/21/2026. Respondent
8 states he has exhausted his SDI benefits and is in the process of filing for bankruptcy because of
9 how dire his financial situation is. Respondent states he has done his best to abide by the week
10 work order, but sometimes his symptoms flare and he is unable to engage in job search activity or
11 he has had to dedicate significant time to this litigation, including responding to extensive
12 discovery requests.

13 5) On 8/26/2026, Respondent filed a Statement of Support Calculations wherein Respondent
14 requests \$5,428 per month in guideline child support (essentially the same amount he is receiving
15 now).

16 6) On 8/26/2026, Respondent filed an Income and Expense Declaration.

17 7) On 9/4/2026, Petitioner filed an Income and Expense Declaration.

18 8) On 9/4/2026, Petitioner filed an Update Declaration. On 9/9/2026, Petitioner filed an Amended
19 Update Declaration. Petitioner asks the Court to:

20 a. Find that Respondent has not complied with the seek work order and order continued
21 monthly compliance and production of supporting documentation;

22 b. Find that the present evidence does not establish that Respondent's earning capacity is
23 zero;

24 c. Impute Respondent with \$172,304 in annual income based on his historical earnings,
25 professional experience, and current evidence of available employment and prevailing
26 salaries. In the alternative, impute Respondent with \$96,000 annually, corresponding to
27 the \$8,000 in monthly expenses Respondent reports under penalty of perjury on his
28 current Income and Expense Declaration. In the alternative, and at a minimum, impute
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1 full-time earnings at San Francisco's minimum wage of \$19.61 per hour, approximately
2 \$40,788.80 annually.

- 3 d. Order guideline support and bonus support as set forth in Petitioner's Exhibit 1.
4 e. Order 2025 child support arrears of \$13,658.13, plus statutory interest if applicable.
5 f. In the alternative, if the Court concludes that Respondent's pending disability application
6 must be resolved before determining earning capacity, set a "short, date-certain
7 continuance of the imputation/support issues, prompt production of the disability
8 determination and supporting physician certification, and continuation of the Seek Work
9 Order except to the extent competent medical evidence establishes specific work
10 restrictions."

11 **B. Findings and Order**

- 12 1) The Court finds good cause to continue this review hearing to a date following the anticipated
13 determination of Respondent's pending disability recertification. The Court hereby sets a future
14 hearing date of **Tuesday, 12/8/2026 at 9:00 AM in Dept. 404** to review Respondent's seek work
15 efforts, to consider imputing income to Respondent, and to review child support.
16 2) Respondent's request to terminate the seek work order is denied at this time. The Court will
17 revisit this issue at the next hearing date.
18 3) At least 20 calendar days prior to the next hearing date, Respondent shall file and serve an
19 updated Income and Expense Declaration, a declaration (not to exceed 5 pages in length, not
20 including exhibits) summarizing Respondent's work search efforts to date and providing his
21 position on whether he should be imputed with income, and a Statement of Support Calculations.
22 Respondent shall attach to his declaration his Work Search Logs.
23 4) At least 10 calendar days prior to the next hearing date, Petitioner shall file and serve an updated
24 Income and Expense Declaration (with all sections fully completed), a declaration (not to exceed
25 5 pages in length, not including exhibits) providing his position on whether Petitioner should be
26 imputed with income, and a Statement of Support Calculations.
27 5) Respondent's attorney shall prepare the Findings and Order After Hearing.
28 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
29 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other

1 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
2 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
3 proposed order after hearing directly to the court. Failure to submit the order after hearing within
4 10 days may allow the other party to prepare a proposed order and submit it to the court in
5 accordance with CA Rules of Court, Rule 5.125(d).
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